



COUNTY OF SONOMA

575 ADMINISTRATION
DRIVE, ROOM 102A
SANTA ROSA, CA 95403

SUMMARY REPORT

Agenda Date: 12/10/2019

To: Board of Supervisors
Department or Agency Name(s): Permit Sonoma
Staff Name and Phone Number: Eric Gage 565-1391
Vote Requirement: Majority
Supervisory District(s): All

Title:

2:05 P.M. - Technical Corrections, Round 7 (PRMD File No. PLP19-0040)

Recommended Action:

Adopt a Resolution approving the proposed General Plan Amendments and finding the project exempt from the California Environmental Quality Act (CEQA), and adopt an Ordinance amending the Official Zoning Database to correct technical errors, and to implement minor zone changes required as conditions of prior project approvals, and amend the text of Chapter 26 of the Sonoma County Code to correct inaccuracies and omissions.

Executive Summary:

Permit Sonoma staff periodically checks the Official Zoning Database to identify discrepancies and ensure its reliability. Minor zoning and land use amendments are then brought forward as technical corrections to remedy the errors identified in the database. Errors and omissions discovered in the Zoning Code, such as incorrect policy references, are also compiled and added to the technical correction package. Finally, minor amendments to zoning and land use to align with modified parcel boundaries, as required by conditions of prior project approvals, have also been included as an efficient means of processing these routine, uncontested projects. The table below summarizes the number of affected parcels.

Category	Reason for Correction	Total Parcels Affected
A	Inadvertent Errors and Historical Corrections	41
B	Required as Conditions of Project Approvals	9
C	Combining District Mapping Corrections	2
Total:		53

This is the seventh group of technical corrections being brought forward to the Board to correct errors and discrepancies identified in the zoning database, Zoning Code and General Plan land use maps since 2010. Absent a statutory exception, the County is limited to amending its general plan no more frequently than four times per year under Section 65358(a) of the Government Code. Each amendment may include more than

one change to the general plan. This is the first amendment to date for 2019 that does not fall under an exception to Section 65358(a).

The Planning Commission held a hearing on October 17th and voted unanimously to recommend the technical corrections to the General Plan, Zoning Ordinance, and Zoning Database presently before your Board.

Discussion:

The Official Zoning Database is a computer database that maintains zoning information for all unincorporated parcels in Sonoma County. As part of the ongoing effort to maintain and improve the accuracy of the database, Permit Sonoma staff periodically identify zoning inconsistencies and then bring them forward as technical corrections. The technical corrections also include corrections to inconsistencies between zoning and General Plan Land Use designations required through project conditions of approval. Because the corrections are clarifying and reinforcing approved land use decisions by the County, the proposed technical changes do not result in any substantive change to County land use policy. Four type of technical corrections are included in Round 7:

- A. Inadvertent Errors and Historical Corrections.** Corrects zoning and General Plan Land Use designations to resolve inadvertent errors and/or inconsistencies with historical records that may have resulted during map digitization or for other reasons. The also restore the subject parcels to the correct zoning and/or land use based on the evidentiary record.
- B. Corrections Approved through Project Conditions of Approval.** Incorporates all known changes to zoning district or General Plan Land Use boundaries to align with approved lot line adjustments and recorded maps.
- C. Zoning Combining District Mapping Corrections.** Corrects Combining District boundaries resulting from mapping updates, refining the location of parcel boundaries. A Combining District is a zoning designation overlaid on the base zoning district for a property. Combining zones include: BH (Biotic Habitat), F1 (Floodway), F2 (Floodplain), HD (Historic District), LG (Local Guidelines), MR (Mineral Resources), RC (Riparian Corridor), SR (Scenic Resources), and VOH (Valley Oak Habitat). The parcel numbers and proposed changes for each property are listed in Attachment A, Exhibit D.
- D. Zoning Code Text Corrections.** Corrects non-substantive errata in Zoning Code text. Details of each technical correction are provided in the attached Planning Commission Staff Report dated October 17, 2019. On October 17, 2019, the Planning Commission reviewed the project and adopted Resolution 19-009 on a 5-0 vote recommending approval of all text changes discussed in the Staff Report, with the exception of Item #17, which concerns a proposed revised definition of "Efficiency Dwelling Unit" under County Code Section 26-02-140. Staff will research consistency of the proposed definition with recently adopted state law changes prior to bring it forward as part of a subsequent Zoning Code revision.

Noticing:

Separate notice was mailed to affected property owners and published in the Press Democrat prior to each public hearing of Planning Commission and Board of Supervisors.

Prior Board Actions:

The Board of Supervisors has adopted six sets of technical corrections to the Zoning Code, Official Zoning Database, Coastal Zoning Database, General Plan and Local Coastal Plan on December 9, 2018, January 5, 2016, November 5, 2013, October 23, 2012, May 10, 2011, and June 8, 2010. On June 12, 2007 the Board of Supervisors approved Resolution No. 07-0526 and adopted Ordinance Numbers 5739 and 5740, thereby amending Chapters 26 and 26C of the County Code to create an Official Zoning Database to replace the old paper Zoning Maps of the County.

Narrative Explanation of Fiscal Impacts:

Not Applicable

Narrative Explanation of Staffing Impacts (If Required):

Not Applicable

Attachments:

ATTACHMENT A: Draft Resolution with Exhibits

EXHIBIT A: Proposed General Plan Land Use Amendments

ATTACHMENT B: Draft Ordinance with Exhibits

EXHIBIT A: Proposed Zone Changes

EXHIBIT B: Proposed Combining District Mapping Corrections

EXHIBIT C: Proposed Zoning Code Text Amendments

ATTACHMENT C: Planning Commission Staff Report and Resolution No. 19-009

Related Items "On File" with the Clerk of the Board:

None

Attachment A, Exhibit A: General Plan Land Use Amendments

#	Address	APN	Existing General Plan Land Use	Corrected General Plan Land Use	Total Acreage Amended	Category
1	4300/4350 Barnes Rd, Santa Rosa	058-040-054	DA 10/RVSC	RVSC	4.98±	A
2	1105 Jacobson Ln, Penngrove	137-040-012	DA 30	DA 40	161±	A
4	7060 Bodega Avenue, Petaluma	022-100-028	LEA 100	LEA 100 (Landmark #152)	0.42±	A
5	7065 Bodega Avenue, Petaluma	022-100-029	LEA 100 (Landmark #152)	LEA 100	1.42±	A

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6	4200 Canfield Road, Sebastopol	025-110-006	LEA 60	LEA 60 (Landmark #162)	89±	A
7	4205 Canfield Road, Sebastopol	025-130-009	DA 15 (Landmark #162)	DA 15	79±	A
8	14270 Valley Ford Road	026-010-077	RR 2	RR 2 (Landmark #123)	5.0±	A
9	14655 Hwy 1, Valley Ford	026-050-008	LEA 160, 160/640 (Landmark #123)	LEA 160, 160/640	293±	A
10	1312 Aggesen Creek Lane, Penngrove	047-073-030	RR 3 (Landmark #190)	RR 3	4.8±	A
11	1350 Aggesen Creek Lane, Penngrove	047-073-031	RR 3 (Landmark #190)	RR 3	4.7±	A
12	2211 London Ranch Road, Glen Ellen	054-040-091	LIA 60 (Landmark #34)	LIA 60	7.7±	A
13	6050 Westside Road, Healdsburg	110-160-016	LIA 60 (Landmark #8)	LIA 60 (Landmark #8, 9, 10)	2±	A
14	6025 Westside Road, Healdsburg	110-160-006	LIA 60 (Landmark #8)	LIA 60 (Landmark #8, 11)	1±	A
15	755 Watmaugh Road	128-391-016	LIA 20 (Landmark #51)	LIA 20	10±	A
16	1492 Adobe Road, Petaluma	137-030-006	DA 10	DA 20	9.3±	A
17	500 Ormsby Lane, Petaluma	137-030-007	DA 10	DA 20	221±	A
18	1015 Corona Rd, Petaluma	137-030-035	DA 10	DA 20	20±	A
19	1015 Corona Rd, Petaluma	137-030-036	DA 10	DA 20	10±	A
20	1015 Corona Rd, Petaluma	137-030-038	DA 10	DA 20	32±	A
21	400 Ormsby Lane, Petaluma	137-030-041	DA 10	DA 20	22±	A
22	440 Ormsby Lane, Petaluma	137-030-042	DA 10	DA 20	3.3±	A
23	111 Ely Road, Petaluma	047-214-027	DA 20, RR 5	RR 5	3±	B
24	No Address	047-214-028	DA 20, RR 5	DA 20	13.4±	B
25	997 Napa Road, Sonoma	126-031-078	LC, RR 5	LC	0.7±	B
26	No Address	126-031-079	LC, RR 5	RR 5	0.04±	B

27	8821 West Dry Creek Road, Healdsburg	139-150-051	LIA 20, RRD 120	LIA 20	0.08±	B
28	8040 Denno Lane, Forestville	083-170-067	RRD 40, RRD 20	RRD 20	10.6±	B
29	No Address	104-060-046	DA 20, RR 2	DA 20	0.14±	B

Attachment B, Exhibit A: Zoning Changes

#	Address	APN	Existing Zoning	Corrected Zoning	Total Acreage Amended
1	111 Ely Road, Petaluma	047-214-027	AR B6 5, DA B6 20, F1 F2 RC50/25 SR VOH	AR B6 5, F1 F2 RC50/25 SR VOH	3±
2	No Address	047-214-028	AR B6 5, DA B6 20, F1 F2 RC50/25 RC100/50 SR VOH	DA B6 20, F1 F2 RC50/25 RC100/50 SR VOH	13.4±
3	997 Napa Road, Sonoma	126-031-078	AR B6 5, C1, SR VOH	C1, SR VOH	0.7±
4	No Address	126-031-079	AR B6 5, C1, SR VOH	AR B6 5, SR VOH	0.04±
5	8821 West Dry Creek Road, Healdsburg	139-150-051	LIA B6 20 SR, RRD B6 120, SR	LIA B6 20 SR	0.08±
6	8040 Denno Lane, Forestville	083-170-067	RRD B6 20, RRD B6 40 LG/116	RRD B6 20 LG/116	10.6±
7	5131 Warm Springs Road, Glen Ellen	054-240-040	K LG/GE2 SR	K LG/GE2 SR HD	0.75±
8	7060 Bodega Avenue, Petaluma	022-100-028	LEA B7 Z, SR	LEA B7 Z, SR, HD	0.42±
9	7065 Bodega Avenue, Petaluma	022-100-029	LEA B7 Z, SR, HD	LEA B7 Z, SR	1.42±
10	4200 Canfield Road, Sebastopol	025-110-006	LEA B6 60 Z, RC50/50	LEA B6 60 HD Z, RC50/50	89±
11	2211 London Ranch Road, Glen Ellen	054-040-091	LIA B6 60, HD LG/MTN SR	LIA B6 60, LG/MTN SR	7.7±
12	2247 London Ranch Road, Glen Ellen	054-040-064	LIA B6 60, HD LG/MTN SR	LIA B6 60, LG/MTN SR	9.4±
13	6050 Westside Road, Healdsburg	110-160-016	LIA B6 60 Z, F1 F2 HD RC50/50 RC200/100 SR VOH	HD District Boundary Change	2±
14	No Address	110-160-017	LIA B6 60 Z, F1 F2 HD RC50/50 RC200/100 SR VOH	HD District Boundary Change	1±
15	755 Watmaugh Road	128-391-016	LIA B6 20, F1 F2 HD RC100/50 SR VOH	LIA B6 20, F1 F2 RC100/50 SR VOH	10±
16	4560 Petaluma Hill Road, Santa Rosa	045-142-026	DA B6 10, SR VOH	DA B6 10, SR	1.5±

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17	4584 Petaluma Hill Road, Santa Rosa	045-142-032	DA B6 10, SR VOH	DA B6 10, SR	0.97±
18	18501 Hwy 128, Calistoga	120-060-002	DA B6 20, RC100/50 SR	DA B6 40, RC100/50 SR	8.0±
19	18345 Hwy 128, Calistoga	120-060-003	DA B6 20, RC100/50 SR	DA B6 40, RC100/50 SR	20±
20	18655 Foss Hill Road, Calistoga	120-060-007	DA B6 20 Z, RC100/50	DA B6 40 Z, RC100/50	53.4±
21	18775 Hwy 128, Calistoga	120-080-002	DA B6 20, RC100/50 SR	DA B6 40, RC100/50 SR	4.3±
22	18880 Hwy 128, Calistoga	120-080-004	DA B6 20, SR	DA B6 40, SR	48.7±
23	18907 Hwy 128, Calistoga	120-080-006	DA B6 20, RC100/25 RC200/25	DA B6 40, RC100/25 RC200/25	20.6±
24	19196 Hwy 128, Calistoga	120-080-008	DA B6 20, NONE	DA B6 40, NONE	5.0±
25	3890 Hwy 128, Calistoga	120-080-010	DA B6 20, SR	DA B6 40, SR	18.7±
26	3870 Hwy 128, Calistoga	120-080-012	DA B6 20, SR	DA B6 40, SR	7.5±
27	19216 Hwy 128, Calistoga	120-080-019	DA B6 20, NONE	DA B6 40, NONE	16.1±
28	18901 Hwy 128, Calistoga	120-080-022	DA B6 20, SR	DA B6 40, SR	11.2±
29	18640 Foss Hill Road, Calistoga	120-080-023	DA B6 20, RC100/25 SR	DA B6 40, RC100/25 SR	7.0±
30	No Address	120-080-024	DA B6 20, RC100/25 SR	DA B6 40, RC100/25 SR	2.2±
31	19200 Hwy 128, Calistoga	120-080-025	DA B6 20, SR	DA B6 40, SR	14.9±
32	19210 Hwy 128, Calistoga	120-080-026	DA B6 20, NONE	DA B6 40, NONE	5.3±
33	No Address	120-080-029	DA B6 20, RC50/50	DA B6 40, RC50/50	16±
34	No Address	120-080-030	DA B6 20, NONE	DA B6 40, NONE	29.1±
35	18800 Hwy 128, Calistoga	120-090-013	DA B6 20, SR	DA B6 40, SR	5.0±
36	18290 A Hwy 128, Calistoga	120-090-031	DA B6 20, RC100/50 SR	DA B6 40, RC100/50 SR	20.0±
37	18320 Hwy 128, Calistoga	120-090-032	DA B6 20, NONE	DA B6 40, NONE	24.4±
38	No Address	104-060-046	DA B6 20 Z, RR B6 2	DA B6 20 Z	0.14±